

CARLETON CONDOMINIUM CORPORATION NO. 276
MINUTES OF THE ANNUAL GENERAL MEETING
HELD ON WEDNESDAY, MAY 15th, 2024
VIRTUAL PLATFORM – ZOOM, OTTAWA, ON

PRESENT:	Chris Hendriks Fiona Cornel	President Secretary
INVITED:	Nadia Daskalova Julie Sigouin Melanie Cox	Auditor, McCay Duff Condominium Manager, Condominium Management Group Chair & Recording Secretary, CMG

1. CALL TO ORDER

The meeting was called to order at 7:00 p.m.

2. CONFIRMATION OF QUORUM

Quorum was established with thirty-two (32) units present in person or by proxy.

3. TECHNICAL MATTERS

M. Cox reviewed technical matters with owners in attendance.

4. INTRODUCTIONS

M. Cox introduced the Board, the Auditor, the Condominium Manager and the chair.

5. CONFIRMATION OF NOTICE

The Notice of Meeting was sent to all owners in advance of the meeting in accordance with the requirements set forth in the *Condominium Act, 1998*.

P. Roberts (423) stated that the financials were not sent in the package. J. Sigouin confirmed that due to a delay in finalizing the draft, the audited statements were sent out separately.

6. REVIEW OF THE AUDITED FINANCIAL STATEMENTS

Copies of the audited financial statements for the year ended December 31, 2023, were distributed to owners with the Notice of Meeting.

N. Daskalova presented the audited financial statements. The independent auditors report states the audit was carried out in accordance with Canadian accounting standards for not-for-profit organizations and the financial statements present fairly, in all material respects, the financial position of the Corporation at its fiscal year end. The financial statements prepared by McCay Duff, for the fiscal year ending December 31, 2023 included:

- Statement of Financial Position
- Statement of Fund Operations
- Statement of Cash Flow
- Auditor's Notes

J. Monorchio (505) says that the audit refers to the reserve fund study from Paterson but the most recent one is from Keller Engineering. N. Daskalova confirms that as the Paterson was the one used for most of 2023 so that is the one that is referenced in this audit.

P. Roberts (423) stated that the interest income is about four times that of the previous year. N. Daskalova confirmed that overall cash in the reserve fund increased and the interest rates went up. C. Hendriks stated that investments were reviewed but it was determined to keep the funds in the reserve fund account as the interest rates were higher and the funds would be needed for upcoming work.

J. Forsythe (490) asked if an explanation could be provided for the variances in professional fees, snow removal, general maintenance and water. C. Hendriks confirmed water was higher due to leak issues. Owners renovating and changing out things to be more water efficient is helping to lower the cost of water. The Board is tracking water bills and usage. The snow removal was due to the overages from the 2022/2023 winter season. This was due to the additional removals needed. Lindsey Landscaping was signed for last winter and while it was not perfect, it was better. The professional fees include the audit which increased slightly, fees for CAT, and an appraisal was done that was not budgeted for. No legal fees were included in the professional fees.

With no questions from the floor, the auditor was excused.

7. APPOINTMENT OF THE AUDITOR

J. Monorchio (505) asked about the delay in finalizing the audit. C. Hendriks confirmed that the Board was slow at reviewing and signing the audit. The Board will be working the auditor and management to ensure this is not an issue for the next AGM.

Motion: To reappoint McCay Duff as the auditor for the current fiscal year.

Moved: J. Forsythe (490)

Seconded: J. Prescott (476)

Majority in Favour. Motion Carried.

8. APPROVAL OF THE 2022 AGM MINUTES

M. Cox confirms some amendments were completed already and sent out to owners before the meeting. This version of the minutes is the one being approved. These amendments include a revised version of the President's report.

P. Roberts (423) confirmed that she was not the owner asking about the Board getting remuneration.

Motion: To accept the minutes of the 2023 AGM as amended.

Moved: J. Prescott (476)

Seconded: C. Dunn (450)

Majority in Favour. Motion Carried.

9. PRESIDENT'S REPORT

C. Hendriks provided a brief report to the owners in attendance on the following items:

- An introduction to owners on who is and his involvement with the Board prior to becoming President.
- A reminder to prospective new board members that there is a larger responsibility to becoming a Board member than attending a monthly board meeting and a few administrative tasks.
- While there are two candidates for election this evening, there is a third term available.
- The new Board should look at extending the terms of the Board from one year to staggered three year terms to assist in the prevention of losing quorum.

- The confirmation that through a survey sent out to owners regarding the potential for smoking ban, it was determined that a majority of owners were against the implementation of smoking rules in the community.
- Some owners responding to the survey sent disrespectful and threatening communications back, prompting a reminder to all owners that owners should be respectful and professional in their communications to the Condominium Manager and by extension the Board.
- The corporation's insurance requires the verification that all units have working smoke detectors so it is important respond to those communications when they are sent out.
- The last year was difficult in terms of property maintenance and finding contractors to come and complete work around the community.
- The paving work was not completed last year as originally anticipated despite multiple follow-up attempts with the selected contractor. The work order was cancelled in the fall and awarded to a new contractor for this spring.
- Wind storm damages last spring increased the withdrawals from the reserve fund to complete repairs.
- The design of the units encourages ice damming in the winters. While this past winter was mild and there were little to no instances this winter, it is something that will need to be closely monitored.
- The Board and management have been able to get started earlier this year on the list of maintenance items for this summer. The asphalt patching has already been quoted and the tree canopy was completed earlier this year. Items like the decks and fences will be priority for this summer.
- Management will be sending out notices later on this week regarding units are not properly maintaining their exclusive use common elements.
- There was an increase in the 2024-2025 budget of 35%; driven by the financial needs of the reserve fund. The operating budget was only increased 5.25%.
- There were overages from the last winter due to the excessive snow received and therefore additional snow removal needed. Some maintenance tasks were deferred in order to lessen the financial burden on the operating budget.
- A rise in complaints about the ground maintenance was logged. The next contractor that quoted was much more expensive so the Board will be working with the grounds maintenance contractor to try and rectify the issues before switching.
- Contributions to the reserve fund doubled. This is in line with the engineer's assessments and the Board's agreement that previous contributions were not aligned with current needs and escalating replacement costs.
- The Board negotiated that projects originally listed to start this summer be deferred by one year and a 35% increase is a sound plan to collect the funds necessary to complete the maintenance projects for the summer of 2025.
- The Board also needs to consider unanticipated costs, such as damages from windstorms that will affect the money in the reserve fund account, however with higher interest rates being collected, that is helping offset those items slightly.
- While the Board wished to have the engineer in attendance for the AGM, they were unable to attend. Any questions brought up tonight for the engineer will be recorded and forwarded to them for their review and response.
- The Board is aware that rodents are an issue with the community, and they hope residents are reading the notices being sent out by management.

10. ELECTION

There are three (3) positions, with one position being voted on by owner-occupied owners only. Chris Hendriks and Fiona Cornel put their names forward for re-election.

The floor is open to further nominations. J. Monorchio put her name forward for any position but the owner-occupied position. C. Hendriks stated that he does not believe non-resident owners should be volunteering for the Board as they are not invested to the same level as owners who live in their units, and would create more work for other board members for on-site things.

P. Roberts (423) stated that J. Monorchio should be considered as she has previous Board experience and would be beneficial to have on the Board.

Motion: To close the floor to further nominations.

Moved By: C. Hendriks (458)

Seconded By: F. Wichser (501)

Majority in Favour. Motion Carries.

Motion: To acclaim Chris Hendriks to the Board of Directors.

Moved By: F. Wichser (501)

Seconded By: J. Forsythe (490)

Majority in Favour. Motion Carries.

Motion: To acclaim Fiona Cornel to the Board of Directors.

Moved By: C. Dunn (450)

Seconded By: C. Vant (460)

Majority in Favour. Motion Carries.

Motion: To acclaim Julia Monorchio to the Board of Directors.

Moved By: C. Dunn (450)

Seconded By: K. Saunder (486)

Majority in Favour. Motion Carries.

11. GENERAL DISCUSSION

V. Peck (459) asked if information can be provided on how capital maintenance projects are being prioritized. She understands there is a need to repair the decks and fences but the rest of the property and units are in disarray and need attending to. C. Hendriks confirmed that the entire property will be inspected during the spring inspection, and will include items like dryer vents and other smaller items.

C. Dunn (450) stated that owners can review the reserve fund study on the website and see where those items land in terms of schedule for maintenance.

V. Peck (459) stated that she is concerned with longer term projects being continuously pushed back and now other items are being pushed back so there will always be some type of catch up and the property will continue to fall apart as it has been. C. Hendriks confirmed that the pavement project has been pushed one year only to build up sufficient funds into the reserve fund. Some items are aesthetic issues and they will also be addressed.

J. Forsythe (490) stated that the walkway near her unit is treacherous and it was supposed to be repaired last year and it was not. C. Hendriks confirmed that asphalt repairs were completed last year and that area may have been missed. J. Sigouin will make a note for it to be repaired this year.

J. Forsythe stated that there are large chunks of asphalt that are creating tripping hazards. J. Sigouin will speak to the landscapers about removing those larger chunks.

J. Forsythe (490) stated that the landscaper missed a bunch of yards. J. Sigouin she will follow up with the landscaper.

V. Peck (459) asked if a special assessment was planned for this year. C. Hendriks confirmed there was nothing currently and they are doing their best to avoid special assessments.

V. Peck (459) stated that there are community members feeding the rats and rodents. She asked what strategies are being implemented to prevent these individuals from continuing to do so. C. Hendriks confirmed there is very little enforcement the corporation can do to stop these activities, other than asking owners to stop. He confirmed that the City of Ottawa website states that well maintained gardens are not considered food sources for rats. Gardens that are not well maintained and allow food to drop and rot on the ground will attract rats. There are ideal conditions under the decks for nests for the rats. He confirmed that the Board is not looking at banning gardens however this topic will be placed on the agenda for the next board meeting.

J. Forsythe (490) stated that she received an email from the city to not throw away rat carcasses but ensure what to do with any that are found on the property. J. Sigouin will reach out to any removals of dead rats to the pest control company so they should be reported to her.

J. Forsythe (490) asked what time the garbage is able to go out. C. Hendriks confirmed it is 6pm on the evening before the pickup day. J. Sigouin asks owners, if possible, to place garbage bags out the morning of pickup, as this will help prevent opportunities for food sources for the rats and with high winds at night, it will prevent loose papers from blowing out of recycling bins. C. Hendriks confirmed that owners should compost, and this will remove food items from the garbage and be another way to reduce the rat problem.

J. Forsythe (490) is concerned to see a rise in management costs when she does not believe owners are getting the level of service for a 5% increase. She would like the Board to consider hiring another management firm. C. Hendriks confirmed the Board will make a note and review at their next Board meeting.

P. Roberts (423) stated that it would be on the Board to routinely collect quotes and ensure they are receiving a competitive price for services, including management.

C. Dunn (450) stated that the window seals are not listed in the reserve fund study and it was noted previously that the next reserve fund study should have the seals included. This was not done. He asked who would be paying for the extra amounts not accounted for for the replacement of the window seals. J. Sigouin confirmed that when the study was received, her focus was on the roadways so the window seals were missed, however it is the Board of Directors who ultimately approves the reserve fund study.

C. Dunn (450) asked if the Board was able to recoup funds from the leaks noted in the previous fiscal year. C. Hendriks confirmed that units that could be charged back were and those funds paid.

V. Peck (459) stated that CMG should be one to cover the costs of the window seals as it was management who missed the item on the reserve fund study. C. Hendriks confirmed that re-visiting the reserve fund study could be done however those costs should not fall on the owners or the Board.

J. Monorchio (505) stated that the snow removal contracts should have been looked at by management and items in the snow removal contract should not have been missed. She asked what advice was received by CMG regarding the approval of the snow removal contract. C. Hendriks confirmed it was one line in a contract that is a standard line in a snow removal contract. This line would not have been caught had it not been for the unprecedented precipitation in the previous winter. This was not due to negligence on either side. J. Monorchio stated that CMG has been lacking in service over the years and these small items just keep getting missed. M. Cox confirmed that while management handles the day-to-day operations of the corporation, the running of the corporation falls to the Board of Directors. The management contract only stipulates for a specified amount of hours per week for the corporation so management has to manage their time within those constraints. Owners who have concerns with those constraints should reach out to the corporate team of CMG to discuss.

R. Jones (462) asked if it was possible to review installing separate water meters for the units. C. Dunn confirmed it was reviewed years ago however it was too expensive an option to pursue. The Board will review this item at the next board meeting.

12. ADJOURNMENT

Motion: To adjourn the meeting at 9:19 p.m.

Moved: C. Dunn (450)

Seconded: R. Jones (462)

All in Favour. Motion Carried.